

1 AN ACT relating to qualifications for elected office.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 67.060 is amended to read as follows:

4 (1) If a majority of the votes cast at an election held under KRS 67.050 are in favor of
5 the fiscal court being composed of the county judge/executive and three (3)
6 commissioners, the county judge/executive shall, no later than the first Monday in
7 January in the year of the regular election for county officers, divide the county into
8 three (3) districts as nearly equal in population as practicable, and shall establish the
9 boundary lines of each of the three (3) commissioner districts so that each district is
10 an unbroken area and not split or divided by another commissioner district. At the
11 next regular election for county officers, and every four (4) years thereafter, there
12 shall be elected by the voters of the entire county three (3) commissioners, one (1)
13 from each district who, with the county judge/executive, shall constitute the fiscal
14 court.

15 (2) (a) In any county containing a city of the first class, which county has heretofore
16 voted in favor of a fiscal court composed of the county judge/executive and
17 three (3) county commissioners, the county judge/executive shall divide the
18 county into three (3) districts as provided in subsection (1) of this section, the
19 districts to be designated for identification purposes by the letters A, B and C,
20 respectively.

21 (b) The three (3) commissioners shall be elected by the qualified voters of the
22 county at large at regular elections held every four (4) years~~[- One~~
23 ~~commissioner shall represent District A and shall be elected at the regular~~
24 ~~election in the year 1973, and two (2) commissioners who shall represent~~
25 ~~Districts B and C, respectively, shall be elected at the regular election in the~~
26 ~~year 1975].~~

27 (3) Persons seeking the nomination of a political party as candidate for the office of

1 county commissioner shall, where a primary election is required for such political
2 party, be voted upon exclusively by the eligible voters of the district in which the
3 person resides and seeks to represent. Persons seeking the nomination of a minor
4 political party persons who file as independent candidates or persons seeking the
5 nomination in counties containing a city with a population equal to or greater than
6 eight thousand (8,000) as determined by the most recent federal decennial census
7 but not a city of the first class shall not be subject to the provisions of this
8 paragraph. They shall be nominated by the voters of the entire county.

9 (4) To be eligible for election as a commissioner representing one of the three (3)
10 districts, a person shall have been a bona fide resident of the district he or she
11 proposes to represent for at least one (1) year immediately preceding the election,
12 and, upon election, shall continue to reside within the district he or she was elected
13 to represent for the duration of his or her term of office, under penalty of forfeiture
14 of the office.

15 (5) Commissioners elected under this section shall take the oath of office and enter
16 upon the discharge of their duties on the first Monday in January after their
17 election, and shall serve for terms of four (4) years and until their successors are
18 elected and qualify, or until the effective date of a return to a fiscal court composed
19 of justices of the peace and the county judge/executive.

20 (6) No person is eligible to be a county commissioner unless he or she, at the time of
21 his or her election, is:

22 (a) At least twenty-four (24) years of age;

23 (b) A natural born citizen of the United States;~~and~~

24 (c) ~~has been~~ For two (2) years next preceding his or her election, a resident of
25 the county for which he or she may be chosen;~~and~~

26 (d) A citizen of Kentucky; and

27 (e) Not a national of any country other than the United States.

1 ➔ Section 2. KRS 83A.040 is amended to read as follows:

2 (1) **(a)** A mayor shall be elected by the voters of each city at a regular election.~~[-A~~
3 ~~candidate for mayor shall be a resident of the city for not less than one (1)~~
4 ~~year prior to his or her election.]~~ His or her term of office shall begin on the
5 first day of January following his or her election and shall be for four (4)
6 years and until his or her successor qualifies. If a person is elected or
7 appointed as mayor in response to a vacancy and serves less than four (4)
8 calendar years, then that period of service shall not be considered for purposes
9 of re-election a term of office.

10 **(b)** A **candidate for** mayor shall be:

11 **1.** At least twenty-one (21) years of age;~~[-]~~

12 **2.** **A natural born citizen of the United States;**~~[- shall be]~~

13 **3.** **A national of only the United States and no other country;**

14 **4.** A qualified voter in the city **for which he or she may be chosen;**~~[- and~~
15 ~~shall reside]~~

16 **5.** **A resident** in the city **for which he or she may be chosen** throughout his
17 or her term of office;**and**

18 **6.** **A resident in the city for which he or she may be chosen for at least**
19 **one (1) year prior to his or her election.**

20 (2) If a vacancy occurs in the office of mayor, the following provisions shall apply:

21 (a) The legislative body of the city shall fill the vacancy within thirty (30) days;

22 (b) A member of the legislative body in any city organized and governed under
23 the commission plan as provided by KRS 83A.140 or city manager plan as
24 provided by KRS 83A.150 may vote for himself **or herself;**

25 (c) A member of the legislative body in any city organized and governed under
26 the mayor-council plan as provided by KRS 83A.130 and in any city of the
27 first class organized under the mayor-alderman plan as provided by KRS

1 Chapter 83 shall not vote for himself or herself; and

2 (d) The legislative body shall elect from among its members an individual to
3 preside over meetings of the legislative body during any vacancy in the office
4 of mayor in accordance with the provisions of KRS 83A.130 to 83A.150.

5 (3) When voting to fill the vacancy created by a resignation of a mayor the resigning
6 mayor shall not vote on his or her successor.

7 (4) (a) Each legislative body member shall be elected at large by the voters of each
8 city at a regular election.~~[A candidate for a legislative body shall be a~~
9 ~~resident of the city for not less than one (1) year prior to his or her election.]~~
10 His or her term of office shall begin on the first day of January following his
11 or her election and shall be for two (2) years, except as provided by KRS
12 83A.050.

13 (b) A candidate for member of a legislative body shall be:

14 1. At least eighteen (18) years of age;~~[, shall be]~~

15 2. A natural born citizen of the United States;

16 3. A national of only the United States and no other country;

17 4. A qualified voter in the city for which he or she may be chosen;

18 5. A resident in the city for which he or she may be chosen for at least
19 one (1) year prior to his or her election; and~~[, and shall reside]~~

20 6. A resident in the city for which he or she may be chosen throughout his
21 or her term of office.

22 (5) If one (1) or more vacancies on a legislative body occur in a way that one (1) or
23 more members remain seated, the remaining members shall within thirty (30) days
24 fill the vacancies one (1) at a time, giving each new appointee reasonable notice of
25 his or her selection as will enable him or her to meet and act with the remaining
26 members in making further appointments until all vacancies are filled. If vacancies
27 occur in a way that all seats become vacant, the Governor shall appoint qualified

1 persons to fill the vacancies sufficient to constitute a quorum. Remaining vacancies
2 shall be filled as provided in this section.

3 (6) If for any reason, any vacancy in the office of mayor or the legislative body is not
4 filled within thirty (30) days after it occurs, the Governor shall promptly fill the
5 vacancy by appointment of a qualified person who shall serve for the same period
6 as if otherwise appointed.

7 (7) No vacancy by reason of voluntary resignation in the office of mayor or on a
8 legislative body shall occur unless a written resignation which specifies a
9 resignation date is tendered to the legislative body. The resignation may be
10 submitted through electronic mail if it originates from the official's electronic mail
11 address and includes also the official's handwritten signature. The resignation shall
12 be effective at the next regular or special meeting of the city legislative body
13 occurring on or after the date specified in the written letter of resignation. If a
14 resignation date is not specified, the written resignation shall be deemed to become
15 effective at the first regular or special meeting of the legislative body occurring on
16 or after its receipt.

17 (8) Pursuant to KRS 118.305(7), if a vacancy occurs which is required by law to be
18 filled temporarily by appointment, the legislative body or the Governor, whichever
19 is designated to make the appointment, shall immediately notify in writing both the
20 county clerk and the Secretary of State of the vacancy.

21 (9) Except in cities of the first class, any elected officer, in case of misconduct,
22 incapacity, or willful neglect in the performance of the duties of his or her office,
23 may be removed from office by a unanimous vote of the members of the legislative
24 body exclusive of any member to be removed, who shall not vote in the deliberation
25 of his or her removal. No elected officer shall be removed without having been
26 given the right to a full public hearing. The officer, if removed, shall have the right
27 to appeal to the Circuit Court of the county and the appeal shall be on the record.

1 No officer so removed shall be eligible to fill the office vacated before the
2 expiration of the term to which originally elected.

3 (10) Removal of an elected officer in cities of the first class shall be governed by the
4 provisions of KRS 83.660.

5 ➔Section 3. KRS 160.180 is amended to read as follows:

6 (1) As used in this section, "relative" means father, mother, brother, sister, husband,
7 wife, son, and daughter.

8 (2) A person shall only be eligible for membership on a board of education if the
9 person:

10 (a) Has attained the age of twenty-four (24) years;

11 (b) *Is a natural born citizen of the United States;*

12 *(c) Is not a national of any country other than the United States;*

13 *(d)* Has been a citizen of Kentucky for at least three (3) years preceding the
14 election;~~and~~

15 *(e)* Is a voter of the district for which he or she is elected;

16 *(f)(e)* Has completed at least the twelfth grade or has been issued a High
17 School Equivalency Diploma, as evidenced by:

18 1. An affidavit signed under penalty of perjury certifying completion of the
19 twelfth grade or the equivalent that has been filed with the nominating
20 petition required by KRS 118.315; or

21 2. A transcript evidencing completion of the twelfth grade or the results of
22 a twelfth grade equivalency examination that has been filed with the
23 nominating petition required by KRS 118.315;

24 *(g)(d)* Does not hold any elective federal, state, county, or city office;

25 *(h)(e)* Is not, at the time of his or her election, directly or indirectly interested
26 in the sale to the board of books, stationery, or any other property, materials,
27 supplies, equipment, or services for which school funds are expended;

1 ~~(i)(f)~~ Has not been removed from membership on a board of education for
2 cause; and

3 ~~(i)(g)~~ Does not have a relative employed by the school district, in the case of a
4 person elected after July 13, 1990. This shall not apply to a board member
5 holding office on July 13, 1990, whose relative was not initially hired by the
6 district during the tenure of the board member.

7 (3) (a) A member of a board of education shall be subject to removal from office
8 pursuant to KRS 415.050 and 415.060 if, after the election the member:

- 9 1. Becomes interested in any contract with or claims against the board, of
10 the kind mentioned in subsection (2)~~(h)(e)~~ of this section;
- 11 2. Moves his or her residence from the division for which he or she was
12 chosen;
- 13 3. Attempts to influence the employment of any school employee, except
14 the superintendent or school board attorney;
- 15 4. Is convicted of a felony;
- 16 5. Performs acts of malfeasance in performance of duties prescribed by
17 law;
- 18 6. Willfully misuses, converts, or misappropriates public property or funds;
19 or
- 20 7. Does anything that would render the member ineligible for reelection.

21 (b) In accordance with KRS 7.410, the Office of Education Accountability shall
22 have the duty and responsibility to investigate current local board of education
23 members for allegations of conduct prohibited by paragraph (a) of this
24 subsection. After review and investigation, the Office of Education
25 Accountability shall refer appropriate matters to the Attorney General.

26 (4) A member of a board of education shall be eligible for reelection unless he or she
27 becomes disqualified.

1 (5) The annual in-service training requirements for all members of boards of education
2 in office as of December 31, 2014, shall be as follows:

3 (a) Twelve (12) hours for members with zero to three (3) years of experience;

4 (b) Eight (8) hours for members with four (4) to seven (7) years of experience;
5 and

6 (c) Four (4) hours for members with eight (8) or more years of experience.

7 The Kentucky Board of Education shall identify the criteria for fulfilling this
8 requirement.

9 (6) (a) For all members of boards of education who begin their initial service on or
10 after January 1, 2015, the in-service training requirements shall be:

11 1. Twelve (12) hours for members with zero to eight (8) years of
12 experience each year, which shall include a minimum of:

13 a. One (1) hour of ethics training each year; and

14 b. One (1) hour of open meetings and open records training within
15 the first twelve (12) months of initial service and at least once
16 every four (4) years thereafter; and

17 2. Eight (8) hours for members with more than eight (8) years of
18 experience each year, which shall include a minimum of:

19 a. One (1) hour of ethics training each year; and

20 b. One (1) hour of open meetings and open records training at least
21 once every four (4) years.

22 (b) Training topics for members under this subsection with less than two (2) years
23 of consecutive service shall include three (3) hours of finance and one (1)
24 hour of superintendent evaluation within the first two (2) years of service. The
25 Kentucky Board of Education shall identify criteria for fulfilling this
26 requirement.

27 ➔Section 4. KRS 262.240 is amended to read as follows:

- 1 (1) A supervisor's term begins on January 1 following his or her election. Supervisors
2 shall be elected for four (4) years as their terms expire. Nominating petitions for
3 supervisors shall be filed with the county clerk not later than the last date prescribed
4 by the election law generally for filing certificates and petitions of nomination. No
5 such nominating petition shall be accepted by the clerk unless it is signed by
6 twenty-five (25) or more qualified resident voters of the district. Qualified resident
7 voters may sign more than one (1) nominating petition to nominate more than one
8 (1) candidate for supervisor. In the event nominating petitions for only the number
9 of supervisors to be elected are filed, the commission shall declare the nominees
10 elected without holding an election. The county clerk shall examine the petition of
11 each candidate to determine whether it is regular on its face. If there is an error, the
12 county clerk shall notify the candidate by certified mail within twenty-four (24)
13 hours of filing.
- 14 (2) A supervisor shall hold office until his or her successor has been elected and has
15 qualified. Vacancies shall be filled for the unexpired term by appointment by the
16 commission.
- 17 (3) A supervisor may be reimbursed for expenses necessarily incurred in the discharge
18 of his or her duties and may be paid a per diem for attending meetings or otherwise
19 discharging the obligations of his or her office.
- 20 (4) **(a)** A supervisor shall be:
21 **1.** At least eighteen (18) years of age;~~[-]~~
22 **2. A natural born citizen of the United States;**
23 **3. A national of only the United States and no other county; and**
24 **4.** A resident of the county or district in which he or she serves as a
25 supervisor;~~[-, and]~~
- 26 **(b)** Upon moving from the county or district, the supervisor shall be ineligible to
27 serve as a supervisor and his or her office shall be vacant.

- 1 (5) A supervisor who has been declared elected without an election pursuant to
2 subsection (1) of this section may be removed from office by the commission in the
3 same manner as provided by KRS 65.007 for removal of an appointed member of
4 the governing body of a special district.
- 5 (6) A supervisor serving on the board of a district shall be immune from personal
6 liability in any civil or criminal action which is based upon any official act or acts
7 performed reasonably and in good faith by the supervisor.